

Notice of Intent to Sole Source

DESCRIPTION

THIS IS A NOTICE OF INTENT TO AWARD A SOLE SOURCE SERVICE CONTRACT AND IS NOT A REQUEST FOR COMPETITIVE QUOTES. The Department of Veteran Affairs (VA), Network Contracting Office (NCO 17) 17, Regional Procurement Office West (RPO-W) intends to negotiate and award a firm fixed price contract for Vitek 2 and Myla PC (Serial No. VTK25238) in accordance with Federal Acquisition Regulation (FAR) 13.501(a) Sole Source acquisitions and FAR 13.106-1(b)(1)(i), only one source being available to meet the Government's needs, to:

BioMérieux, Inc.

P.O. Box 15969,

Durham, North Carolina,

27704, USA

The anticipated NAICS code is: 811210, Electronic and Precision Equipment Repair and Maintenance

A. GENERAL INFORMATION

1. **SCOPE OF WORK:** The Research Department located at the Central Texas Veterans Health Care System (CTVHCS), 1901 S. 1st Street, Temple, Texas requests a new service contract to cover one (1) base year and four (4) option years of maintenance for the Biomerieux Vitek 2 and Myla PC.

Service contract dates: 5/01/2025-4/30/2030 (Base Year: 5/1/25-4/30/26)

2. **BACKGROUND:** NCO 17, RPO-W requests a new service contract for the Biomerieux Vitek 2 and Myla PC (Serial No. VTK25238). These are critical pieces of equipment that are required for completion of VA-funded research projects at the CTVHCS facility. The Vitek 2 and Myla PC are not connected to the VA Network. Contractors will not require access to the VA Network.

3. **DESCRIPTION of SERVICES:**

- a. Repair service(s) will take place on site at CTVHCS
- b. will provide Telephone Support available 24 hours a day, 7 days a week
- c. Service coverage available 7 days a week, between the hours of 7am to 7pm local time
- d. One (1) annual preventative inspection/maintenance (PM) per instrument per agreement year
- e. Inspection/maintenance will take place on site at CTVHCS
- f. Coverage for all repair costs during coverage hours including travel, parts, and labor
- g. Services may only be performed by instrument manufacturer certified technicians

*= Required Field

Notice of Intent to Sole Source

Notice of Intent to Sole Source

- h. Contractors will come onsite for repairs only when research personnel are available to escort and provide access, Monday-Friday between the hours of 8am-4pm. Contractors will not attempt to service equipment on outside of previously mentioned hours, on weekends or the following holidays:

- 4. **SERVICE and WARRANTY:** All services must be performed by certified Biomerieux Field Service Engineers; service provided by anyone other than Biomerieux certified specialists will void warranty and future service contracts with Biomerieux.

Based on market research, Biomerieux is the sole source manufacturer and service provider of the VITEK 2 and Myla PC that can meet the Government's minimum requirements for this action.

How to Respond:

This notice of intent is not a request for competitive proposals, and no solicitation document exists for this requirement. Sources interested in responding to this notice are required to submit a capability statement that includes management and technical data and cost information, in sufficient detail and with convincing evidence that clearly demonstrates the capability to provide the required supplies to VA. All capability statements received by the due date of this notice will be considered by the Government. A request for documentation or additional information or submissions that only ask questions will not be considered as an affirmative response. A determination by the Government not to compete based on responses to this notice is solely within the discretion of the Government. Information received will be considered solely for the purpose of determining whether to conduct a competitive procurement or to proceed with a sole source purchase order.

If a vendor challenges the basis of this requirement, please email capability statements as a Microsoft Word or Adobe PDF attachment To Romya Turner;
Romya.Turner@va.gov

Please provide any existing contract vehicles (GSA FSS, MAS, GWAC, etc.) you currently hold for which this requirement would be within scope of this contract action.

Name of the firm, point of contact, phone number, email address, SAM ID number, CAGE code, a statement regarding small business status, if applicable (including small business type (s)/certifications(s) such as SDB, 8(a), HUBZone, SDVOSB, WOSB, etc.) under the corresponding NAICS code.

RESPONSE SUBMISSION

Please submit responses via email to Romya.Turner@va.gov by 1:00 PM CST, April 9, 2025. VA reserves the right not to respond to any or all emails or materials submitted.

End of Document

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